

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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SHANA BRACERO,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER QUENTIN HOWARD (shield #18459),
POLICE OFFICER TYLER HANSON (shield #17921),
SERGEANT RUBEN SANTOS (shield #08406)**

Defendants.
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Index No. _____
Purchased _____

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
Sept. 27, 2024



THE LAW OFFICE OF SHANNON GRIFFIN
Attorney for Plaintiff
840 Grand Concourse, Suite 1-A
Bronx, NY 10451
(718) 744-8741

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****SHANA BRACERO****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER QUENTIN HOWARD (shield #18459),
POLICE OFFICER TYLER HANSON (shield #17921),
SERGEANT RUBEN SANTOS (shield #08406)****Defendants.**

Plaintiff, SHANA BRACERO, by her attorneys THE LAW OFFICE OF SHANNON GRIFFIN, by SHANNON GRIFFIN, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff SHANA BRACERO was a resident of State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant POLICE OFFICER QUENTIN HOWARD, (shield #18459), ("PO HOWARD") was and still is an officer employed by Defendants.

5. At all times hereinafter mentioned, Defendant POLICE OFFICER TYLER HANSON (shield #17921), (“PO HANSON”) was and still is an officer employed by Defendants.
6. At all times hereinafter mentioned, Defendant SERGEANT RUBEN SANTOS (shield #08406) (“SGT SANTOS”) was and still is an officer employed by Defendants.

BACKGROUND

7. On July 5, 2023, at approximately 11:58 p.m., in front of 2789 Valentine Avenue in Bronx County, without just cause or provocation, Defendants, including PO Howard, PO Hanson, and SGT Santos, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Assault in the Second Degree and related charges.
8. On or about July 7, 2023, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff commenced.
9. Plaintiff remained in custody until she was released on or about July 7, 2023.
10. On July 20, 2023, the count of Assault in the Second Degree was dismissed by motion of the Bronx District Attorney.
11. On Augst 22, 2023, Plaintiff accepted an Adjournment in Contemplation of Dismissal.
12. On Feb. 21, 2024, the criminal charges were dismissed and sealed.

PROCEDURAL POSTURE

13. On August 23, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff’s behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
14. More than thirty days have elapsed since service of said notice and defendant CITY has

failed to pay or adjust this claim.

15. A 50-H hearing has been held.

16. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

17. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

18. Paragraphs 1-17 are incorporated by reference as fully set forth herein.

19. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 7-9, and Plaintiff did not consent to that arrest or confinement.

20. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

21. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: BATTERY

23. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.

24. When PO HOWARD, PO HANSON and SGT SANTOS grabbed Plaintiff and arrested Plaintiff, they subjected Plaintiff to a harmful or offensive bodily contact. PO HOWARD, PO HANSON and SGT SANTOS intended to make that contact without the consent of Plaintiff.

25. As a result of being battered by PO HOWARD, PO HANSON, and SGT SANTOS, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

FOURTH CAUSE OF ACTION: ASSAULT

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. PO HOWARD, PO HANSON, and SGT SANTOS, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by approaching Plaintiff and violently handcuffing Plaintiff.

28. As a result of being assaulted by PO HOWARD, PO HANSON, and SGT SANTOS, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
Sept. 27, 2024

Yours, etc.,

THE LAW OFFICE OF SHANNON GRIFFIN


BY: SHANNON GRIFFIN, ESQ.

Attorney for Plaintiff
840 Grand Concourse, Suite 1-A
Bronx, NY 10451
(718) 744-8741

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**-----X
SHANA BRACERO,**Index No.**

Plaintiff

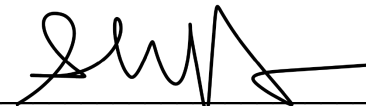
-against-

**THE CITY OF NEW YORK,
POLICE OFFICER QUENTIN HOWARD (shield #18459),
POLICE OFFICER TYLER HANSON (shield #17921),
SERGEANT RUBEN SANTOS (shield #08406)**Defendants
-----X

I, **SHANNON GRIFFIN**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
Sept. 27, 2024



SHANNON GRIFFIN